



Boulder Valley School District

File: JECC

Adopted: January 10, 1991

Revised: February __, 2024

SCHOOL ASSIGNMENT AND SCHOOL CHOICE

The Board of Education supports a variety of high quality educational programs. The Board's enrollment policies, including open enrollment, are intended to:

- o Encourage all students residing within the School District to attend BVSD schools
- o Provide clear, accessible and proactive information about schools and choice
- o Ensure equitable access to school choice opportunities
- o Support stability for schools and households
- o Enable employees to enroll their students as an employee benefit
- o Offer opportunities for enrollment by out of district students

School Assignment

BVSD students may attend their designated neighborhood school (based on home address), or their parent/guardian may submit an application for open enrollment to another BVSD school. Students who reside outside BVSD may also apply for open enrollment in accordance with this Policy.

Other than as assigned through open enrollment, students are expected to attend the school which lies within the attendance area in which they live, with the following exceptions:

1. If a school is overcrowded, the School District may assign students to other schools where space is available.
2. If needed to address appropriate working and learning environments, the School District may administratively place students in accordance with Board Policy.
3. If requested by a parent/guardian, the School District may grant an administrative transfer in accordance with Board Policy.

School Choice

To provide equitable access to school choice, the School District shall strive to proactively deliver information to all members of our community through multiple modalities, including

direct outreach to under-represented community members, online materials, and in-person opportunities. Information and application materials will be offered in as many community languages as possible.

Approval of open enrollment is based on available space, programming, and staffing at the requested school. Some schools/grade levels may have no spaces to offer, and BVSD reserves the right to retain space for projected student enrollment. When the number of applicants exceeds the number of spaces available, students will be selected by a random selection lottery.

In implementing open enrollment, the School District is not required to:

1. Make alterations in the structure of a requested school or make alterations to the arrangement or function of rooms within a requested school
2. Allocate additional staff within a particular program or school requested
3. Establish and offer any particular program in a school if such program is not offered currently in such school
4. Alter or waive nondiscriminatory eligibility criteria for participation in a particular program

Open enrollment requests granted will be approved for the duration of that school level (elementary, middle level, or high school), and the selected school becomes the “school of attendance” through the highest grade offered at the school, unless school assignment under this Policy necessitates adjustments to enrollment at particular schools or programs. Students must reapply when moving from one school level to the next, if still seeking assignment under open enrollment.

Students with Disabilities

Students with an active Individual Education Plan (IEP) have the same opportunity to open enroll as all students. The open enrollment application does not request information about disability status and admits all students through the lottery. Once a student has been admitted and completes the online enrollment process, the School District will convene as necessary an IEP team to determine whether the selected school can deliver a free appropriate public education (FAPE) and to consider the parent/guardian’s input on location. If the IEP team determines that FAPE is not available in the school of choice, the School District will issue a prior written notice in accordance with federal and state law.

Athletic and Activities Eligibility

Students assigned to schools through choice will have the same curricular and extracurricular status as all other students attending the school, as determined by applicable law, bylaws of the Colorado High School Activities Association, and the School District’s eligibility requirements.

Bilingual/Dual Language Programs

When applying to Bilingual and Dual Language Programs, native English speaking students should have an educational background in a bilingual program and will be assessed by the school to determine program appropriateness prior to final acceptance.

Data

The Superintendent shall create data systems that provide information on open enrollment, discern trends, help families make decisions, and facilitate program improvement and planning.

LEGAL REF:

C.R.S. § [19-1-115.5](#) (foster home establishes residence)

C.R.S. § [22-1-102](#) (2) (definition of resident of district)

C.R.S. § [22-20-106](#) (designation of general and special education responsibilities for students with disabilities)

C.R.S. § [22-20-107.5](#) (district of residence for students with disabilities)

C.R.S. § [22-20-109](#) (tuition for special education services)

C.R.S. § [22-32-109](#) (1)(II) (Board duty to adopt policies requiring enrollment decisions to be made in a nondiscriminatory manner)

C.R.S. § [22-32-110](#) (1)(k) (protection against discrimination on racial or ethnic background, includes hair)

C.R.S. § [22-32-110](#) (1)(m) (power to fix boundaries)

C.R.S. § [22-32-115](#) (2)(b) (open enrollment for Colorado residents)

C.R.S. § [22-32-116](#) (non-resident right to continue semester, if in 12th grade may finish year, special rules for elementary students)

C.R.S. § [22-33-103](#) (resident right to attend district school)

C.R.S. § [22-33-106](#) (3) (grounds to deny admission)

C.R.S. § [22-36-101](#) (open enrollment policy must have time line and reasons to deny enrollment)

1 CCR [301-8](#), Rules 4.03 and 8.07 (no use of IEP or disability status in admissions)

CROSS REF.:

[EEA](#), Student Transportation Services

[JC](#), School Attendance Areas

[JECC](#), School Assignment and School Choice

[JECC-R](#), School Choice Procedure (Open Enrollment)

End of File: JECC